

CV-25-012731 ORTEGA, OFELIA vs VASQUEZ, RUBEN - Defendant's Motion for Protective Order - DENIED.

County: stanislaus

Division: Civil Law and Motion

Department: 22

Hearing date: 2012-04-02

Motion: On July 28, 2026, Defendant filed a motion for protective order seeking to prohibit Plaintiff from propounding further discovery and to relieve Defendant from responding to Plaintiff's requests pursuant to Code of Civil Procedure sections 2017.020, 2030.090, 2031.060, and 2033.080. On July 30, 2026, Defendant filed a declaration related to his motion for protective order. On August 6, 2026, Plaintiff filed an opposition. No reply was filed. "The court shall limit the scope of discovery if it determines that the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. The court may make this determination pursuant to a motion for protective order by a party or other affected person. This motion shall be accompanied by a meet and confer declaration under Section 2016.040." (Code Civ. Proc., § 2017.020(a).) "The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion for a protective order, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2017.020(b).) The motion is procedurally defective. It fails to comply with Code of Civil Procedure sections 2017.020, 2030.090, 2031.060, and 2033.080, which requires "a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion." (Code Civ. Proc., § 2016.040.) Here, Defendant states in his declaration that he did not attempt to meet and confer before filing the motion for protective order. Defendant also states that he is in the process of seeking legal counsel. Accordingly, the motion for protective order is DENIED. The Court declines to issue sanctions against Defendant in this instance

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